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Case #24CV428595
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8 **IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA**
9 **IN AND FOR THE COUNTY OF SANTA CLARA**

10 CARLOS ROMALDO PAXTO CHEN, *an*
11 *individual*; OSCAR CRUZ GABRIEL, *an*
12 *individual*,

13 Plaintiffs,

14 v.

15 YOSHI JAPANESE CUISINE INC, *a*
16 *California Corporation*; YOSHI SUSHI &
17 GRILL LLC, *a California limited liability*
18 *company*; YOSHI3 LLC, *a California*
19 *limited liability company*; JIN YAO
20 HUANG, *an individual*; and DOES 1
21 through 20, inclusive,

22 Defendants.

Case No. 24CV428595

**MEMORANDUM OF POINTS AND
AUTHORITIES IN SUPPORT OF MOTION
TO CORRECT MISSPELLING OF
PLAINTIFF'S NAME IN COMPLAINT**

DATE: NOVEMBER 19, 2026
TIME: 1:30 PM
DEPT: 22

23 **I. INTRODUCTION**

24 Plaintiff CARLOS ROMALDO PAXTO CHAN brings this motion to correct a clerical
25 misspelling of Plaintiff's name in the Complaint. As originally filed, the Complaint incorrectly
26 spelled Plaintiff's name as "CARLOS ROMALDO PAXTO CHEN[.]" This error was
27 inadvertent and resulted from a typographical error when copying Plaintiff's name into the
28 Complaint during the preparation of the pleading, which was then used as reference for the
remainder of the document. This correction changes no allegation and causes no prejudice to
Defendants. The Court should grant this motion and issue an order permitting the filing of a First
Amended Complaint with the corrected spelling.

II. LEGAL STANDARD

Code of Civil Procedure (“CCP”) § 473(a)(1) provides that “[t]he court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party.” This section explicitly permits correcting mistaken spellings of Party names to ensure all parties are correctly named in an action. “If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” *Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530. Courts routinely grant amendments when they do not alter the substance of the action or the identity of the real party in interest. See *Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490. Such amendments encourage judgments made on the merits rather than technical and procedural arguments.

III. ARGUMENT

A. The Proposed Amendment Corrects a Clerical Error in Plaintiff’s Name

The sole purpose of this motion is to correct an inadvertent typographical error in Plaintiff’s name. Plaintiff’s legal name is “CARLOS ROMALDO PAXTO CHAN[.]” (Declaration of Thomas P. Skinner (“Skinner Decl.”) ¶ 3.) The name as spelled in the Complaint was the result of a clerical mistake and does not reflect Plaintiff’s true and correct legal identity. (Skinner Decl. ¶ 4.) This error was inadvertent and resulted from a typographical error when copying Plaintiff’s name into the Complaint during the preparation of the pleading, which was then used as reference for the remainder of the document. The Court is authorized to permit amendment “by correcting a mistake in the name of a party,” pursuant to CCP § 473(a)(1). Plaintiff seeks leave to amend within that provision.

B. Defendant(s) Will Suffer No Prejudice

Plaintiff’s amendment will cause no prejudice to Defendants. The Complaint substantially and clearly identifies the parties involved, and Plaintiff’s amendment will only conform Plaintiff’s name to the correct legal spelling, not add or change any parties in this action. (Skinner

Decl. ¶ 5.) There will be no alterations or additions to the subject matter of the litigation, the events at issue, or the claims or legal theories asserted. (*Id.*) As such, Defendants' position will not be changed even remotely by the amendment to the complaint.

Furthermore, this case has not reached a stage of litigation where the alteration of Plaintiff's name would cause confusion. Discovery is ongoing, the record is not significantly developed, and a trial date has not yet been set. Defendants will have ample time to address any administrative issues that may arise from this correction. Any claims of prejudice would be speculative and does not outweigh a risk of injustice in maintaining an incorrect spelling of a plaintiff's name on the face of the Complaint.

C. The Motion Is Timely

Plaintiff brings this motion upon Plaintiff's counsel's identification of the misspelling of Plaintiff's name after reviewing further documentation. The timing of Plaintiff's motion is reasonable, and both the Court's schedule and the opposing party's litigation position will not be adversely affected by granting the requested relief.

IV. CONCLUSION

Plaintiff requests that the Court grant this motion and enter an order permitting Plaintiff to file a First Amended Complaint correcting the spelling of Plaintiff's name and directing that all future filings in this action reflect Plaintiff's correct legal name.

Dated: April 3, 2026

SKINNER LAW GROUP, APC

By: /s/ T.P. Skinner

T.P. SKINNER

Attorney for Plaintiff